BEST PART OF THE ULTIMATE SOLUTION

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SUMMARY OF FORMS UNDER COMPANIES ACT, 2013

Forms	Section	Purpose
DIR 2	152(5)	Consent given by a person to act as director of the company
DIR 3	153	Application for allotment of DIN before being appointed in an existing co.
DIR 3B	156	Intimation of DIN to company/companies in which the person is a director
DIR 3C	157	Intimation by the company to the Registrar on the DIN
DIR 3 KYC		Application for filing KYC of the director
DIR 5	-	Application for surrender of DIN
DIR 6	-	Intimation of changes in particulars specified in DIN application
DIR-8	164(2)	Intimation by a director to a company about his/her disqualification
DIR 9	164(2)	Disqualification of directors to be intimated to the Registrar by the company
DIR 10	164(2)	Application for removal of disqualified directors
DIR 11	168	Notice of resignation by a director to the Registrar
DIR 12	152(5)	Particulars of Directors and KMP appointed and any changes
MBP 1	184(1)	Disclosures by a director of his interest or concern in any other companies
MBP 2	186	Register of loans, security, guarantee, and acquisition made by the company
MBP 3	187	Register of investments that are not held in its own name by a company
MBP 4	189	Register of C/A with Related Party or in which directors are interested
MR 1	196(4)	Return for the appointment of a WTD, MD or Manager
MR 2	Rule 7	Application to CG for approval of appt./reappt./rem. of WTD, MD or Manager
MR 3	204	Format of the Secretarial Audit Report
CAA 1	230	Creditors Responsibility statement
CAA 2	230	Notice of meeting of creditors or members
CAA 10	-	Solvency Declaration
NDH-1	Rule 5	Certified Return of Stat. compliances [Within 90 days of end of 1st /2nd FY]
NDH-2	Rule 5	Application to RD for extension [within 30 days of close 1st FY]
NDH-3	Rule 21	Company to file half yearly return with ROC
MSC - 1	455	Application to ROC for obtaining the status of dormant company
MSC - 2	455	Certificate of the status of dormant company
MSC - 3	455	Return of dormant companies
MSC - 4	455	Application for seeking status of active company
MSC - 5	455	Certificate by ROC allowing an active status for the company

MATTERS REQUIRING ORDINARY RESOLUTION

Forms	Purpose
151	Appointment of SSD shall be subject to Sec 152 (and hence Resolution at GM)
152(2)	General Rule – Every director to be appointed by a resolution in the GM
160	To appoint a person other than retiring director as a director
161(2)	To authorise BOD to appoint alternate directors. (If not authorized by AOA)
169(1)	Removal of director before expiry of his term of office (special notice required)
169(5)	For appointment of a director in place of the director who is removed
181	Contribution to Charitable Trust > 5 % of its Average Net Profit for 3 immediately preceding FY
188 + Rule 15	Approval for entering into related party transactions exceeding the prescribed limits
191	Approval for payment of compensation for loss of office w.r.t, transfer of undertaking, etc
192	Entering into any arrangement involving non-cash consideration
196(4)	Approval of appointment, remuneration and other T&C of MD, WTD or manager.
197(1) 1st Proviso	To authorize payment of remuneration exceeding 11% of net profits of the company to the directors and manager (subject to Schedule V).
197(4)	To approve remuneration payable to directors or manager (if not approved by AOA)

MATTERS REQUIRING SPECIAL RESOLUTION OF THE SHAREHOLDERS

(Learn by-heart which sections needs SR. The balance will be Ordinary Resolution)

Section	Particulars
149(1)	Appointment of > 15 directors
149(10)	Reappointment of Independent Director after first term
165	For specifying any lesser no. of cos. in which a director of company may act as directors
169(1)-1st Proviso	Removal of Independent director re-appointed for second term u/s 149(10)
180	Restrictions on power of the Board.
185	To advance any loan, give guarantee or provide security w.r.t, loan taken by any person in whom any director of the company is interested
186(3)	Loan and Investment by co. > limit u/s 186(2) (Pass SR by postal ballot if Sec 110 applicable)
196 (3)	Appointment of persons aged >= 70 years as MD, WTD or manager.
197(1)- 2nd Proviso	Payment of remuneration in excess of 5% or 10% or 1% or 3%. (but not 11%)
210	CG may order investigation into affairs of co. on receipt of intimation of SR by the company
212	Intimation to CG that affairs of company ought to be investigated by SFIO
248	For making an appln. to ROC for striking off name of the co. (SR or consent of 75% of SH)
271	For resolving winding up of the company by Tribunal.
455	For making an application to ROC for obtaining status of ROC

MATTERS REQUIRING – NO VOTE CAST AGAINST THE RESOLUTION

Section	Particulars
162	Appointment of >1 director by a Single Resolution can be made only if a resolution that the appointment shall be so made, if first passed w/o any vote being cast against it.

RESOLUTIONS THAT HAVE TO BE PASSED BY POSTAL BALLOT (MANDATORY)

[Only where Sec 110 applies to the company]

Section	Particulars
180(1)(a)	Approval for sale of the whole or substantially the whole of undertakings of the co.
186(3)	Giving Loans, Guarantee, Securities in excess of limit u/s 186(3)

IMPORTANT LIMITS FOR APPLICABILITY OF VARIOUS SECTIONS

Section No.	Provision	Limits
149(1)-2nd Proviso	Appointment of Women director	• Listed companies • Unlisted Public co. having PUSC ≥ Rs. 100 crs or T/O ≥ Rs. 300 crs
149(4)	Independent Directors Not Applicable to – JV, WOS, Dormant company u/s 455	Listed public companies – At least 1/3rd of total no. of directors Following Unlisted Public Cos – At least 2 Independent Directors • Paid up capital ≥ Rs. 10 crores, or • Turnover ≥ Rs. 100 crores, or • Aggregate of o/s loans, debentures and deposits > Rs. 50 crs
151	Small SH Director	Listed companies
177/178	AC and NRC	Same as limit u/s 149(4)
177 + Rule 7	Vigil mechanism	• Listed companies • Any company which accepts deposits from the public • Any co. which has borrowed money from banks & PFI > Rs. 50 crs
178	SRC	Co. having > 1,000 SH, DH, deposit-holders and other sec. holders.
203(1) + Rule 8	Mandatory Appointment of KMP	• Listed companies • Public companies having paid-up share capital ≥ Rs. 10 crore.
203	Whole time CS	Every Private Company having a paid-up share capital ≥ Rs. 10 crore.
203(1)-2nd Proviso	Chairman may be appointed as MD/ CEO	Public cos. having PUSC ≥ Rs. 100 crs +T/O ≥ Rs. 1,000 crs + engaged in multiple businesses & appointed CEO for each such biz.
204 + Rule 9	Mandatory Secretarial Audit	• Listed companies • Public companies having paid up capital ≥ Rs. 50 crores • Public companies having turnover ≥ Rs. 250 crores • Every company having o/s loans/borrowing from banks/PFI ≥ Rs. 100 crs
213	Investigation into Company's Affairs in Other Cases	On an appln. (supported by evidence showing reasons for invg.) by: 1. Co. having share cap – Not less than 100 mem or 1/10th of VP 2. Co. not having SC >= 1/5th of persons on register of members

244	Rights to apply u/s 241	Company having share capital – Not less than: 1. Lower of 100 members or 1/10th of total no. of members 2. Mem. >= 1/10th of issued SC of co. (provided all calls are paid) Co. not having SC – Not less than 1/5th of persons on reg. of mem.
245	Class Action:	Members: Company having share capital – Not less than: a. Lower of 100 members or 5% of total no. of members b. Members holding such % of issued SC [Unlisted co.– 5%; Listed co. – 2%] (provided all calls are paid) Company not having SC – >= 1/5th of persons on register of mem. Depositors: Not less than: a. Lower of 100 depositors or 5% of total no. of depositors b. Such depositors to whom company owes 5% of total deposit

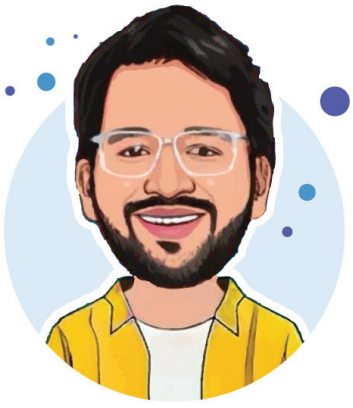
IMPORTANT PENALTIES IN THE CHAPTER OF DIRECTORS [SEC 149 TO 205]

Section	Contravention	Person Liable	Jail?	And/ or	Fine
157	Failure of company to intimate DIN to ROC	Company and OID	-	-	Rs. 25k + Rs. 100/day upto Rs. 1L
159	Contravention u/s 152, 155 & 156	OID	-	-	Upto Rs. 50k+ Upto Rs. 500/ day
165	Maximum no. of directorship	Person who holds such directorship	-	-	Rs. 2,000/day up to Rs. 2 lakhs
166	Duties of director	Director	-	-	Rs. 1 lakh to Rs. 5 lakhs
167	Director functioning post vacation	Such director	-	-	Rs. 1 lakh to Rs. 5 lakhs
172	Contravention of Sec 149-172 if no specific penalty given	Company	-	-	Rs.50k + Rs. 500/day upto- Rs.3L
		OID	-	-	Rs.50k + Rs. 500/day upto- Rs.1L
173(4)	Failure to give notice of BOD Meeting	Officer whose duty to send	-	-	Rs. 25,000
178(8)	Contravention of Sec 177 and 178	Co	-	-	Rs. 5 lakhs
		OID	-	-	Rs. 1 lakh
182	Contravention of Sec 182	Company	-	-	Upto 5x amount contributed
		OID	Upto 6m	AND	Upto 5x amount contributed
184(4)	Failure to disclose interest u/s 184	Director concerned	-	-	Rs. 1 lakh

185	Contravention under Sec 185	Company	-	-	Rs. 5 lakhs to Rs. 25 lakhs
		OID	Upto 6m	Or	Rs. 5 lakhs to Rs. 25 lakhs
		Person to whom LGS is given	Upto 6m	Or	Rs. 5 lakhs to Rs. 25 lakhs
186	Contravention u/s 186	Company	-	-	Rs. 25,000 to Rs. 5 lakhs
		OID	Upto 2Yrs	AND	Rs. 25,000 to Rs. 1 lakhs
187	Contravention u/s 187	Company	-	-	Rs. 5 lakhs
		OID	-	-	Rs. 50,000
188	Contravention of sec 188 by entering into RPT	Dir./ employee who entered	-	-	Listed co – Rs. 25 lakhs Unlisted company – Rs. 5 lakhs
189	Failure to maintain register of C/A in which dir. intt.	Directors concerned	-	-	Rs. 25,000
190	Contract of employment with MD/WTD	Company	-	-	Rs. 25,000 for each default
		OID	-	-	Rs. 5,000 for each default
191	Contravention of Sec 191	Director concerned	-	-	Rs. 1 lakh
197	Contravention of Sec 197	Company	-	-	Rs. 5 lakhs
		Person concerned	-	-	Rs. 1 lakh
203	Contravention u/s 203	Company	-	-	Rs. 5 lakhs
		OID	-	-	Rs. 50K+ Rs. 1,000/day upto Rs.5L
204	Contravention u/s 204	Officer of Company/CS in practice	-	-	Rs. 2 lakhs

The End

STUDENT'S NOTES:



YOUR CA BUDDY

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